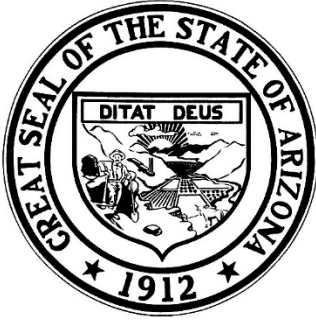


HOUSE FLOOR AMENDMENT EXPLANATION



Bill Number: 4070

Hernandez A Floor Amendment

Narrows the outlined offenses and adds statutory references.

Stipulates that the outlined prohibition includes conviction of a substantially similar offense under the laws of any other state or the United States.

Amendment explanation prepared by SC
Phone Number 65848

sc
3/3/2026

HERNANDEZ A FLOOR AMENDMENT
HOUSE OF REPRESENTATIVES AMENDMENTS TO H.B. 4070
(Reference to printed bill)

Amendment instruction key:

[GREEN UNDERLINING IN BRACKETS] indicates text added to statute or previously enacted session law.

[Green underlining in brackets] indicates text added to new session law or text restoring existing law.

[~~GREEN STRIKEOUT IN BRACKETS~~] indicates new text removed from statute or previously enacted session law.

[~~Green strikeout in brackets~~] indicates text removed from existing statute, previously enacted session law or new session law.

<<Green carets>> indicate a section added to the bill.

<<~~Green strikeout in carets~~>> indicates a section removed from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Title 10, chapter 25, article 1, Arizona Revised
3 Statutes, is amended by adding section 10-3203.01, to read:

4 10-3203.01. Incorporation prohibited

5 NOTWITHSTANDING ANY OTHER LAW, THE COMMISSION MAY NOT INCORPORATE A
6 CORPORATION UNDER THIS CHAPTER IF AN OFFICER, DIRECTOR OR TRUSTEE OF THE
7 CORPORATION HAS BEEN CONVICTED OF ANY OF THE FOLLOWING OFFENSES:

8 ~~[1. SMUGGLING.]~~

9 ~~[2. PARTICIPATING IN OR ASSISTING A HUMAN SMUGGLING ORGANIZATION.]~~

10 ~~[3. UNLAWFULLY OBTAINING LABOR OR SERVICES.]~~

11 ~~[4.]~~[1.] SEX TRAFFICKING[AS DEFINED IN SECTION 13-1307].

12 ~~[5.]~~[2.] TRAFFICKING OF PERSONS FOR FORCED LABOR OR SERVICES[AS
13 DEFINED IN SECTION 13-1308].

14 ~~[6.]~~[3.] CHILD SEX TRAFFICKING[AS DEFINED IN SECTION 13-3212].

15 ~~[7.]~~[4.] ANY FEDERAL IMMIGRATION OFFENSE [ANY SUBSTANTIALLY SIMILAR
16 OFFENSE UNDER THE LAWS OF ANY OTHER STATE OR THE UNITED STATES].

17 Sec. 2. Section 12-722, Arizona Revised Statutes, is amended to
18 read:

19 12-722. Trafficking of persons; civil liability;
20 applicability; remedies; joint and several
21 liability; definitions

22 A. A person who engages in OR FACILITATES the trafficking of a
23 person or who intentionally or knowingly benefits from participating in OR
24 FACILITATING a venture that traffics another person is liable to the
25 person trafficked for damages that arise from the trafficking of that
26 person by the person or venture.

27 B. It is not a defense to liability under this section that the
28 person was acquitted or has not been prosecuted for or convicted of an

1 offense included in title 13 or has been convicted of a different offense,
2 or of a different type or class of offense, for the conduct that is
3 alleged to give rise to liability under this section.

4 C. This section applies to any legal entity that is governed by
5 title 10 or 29.

6 D. Notwithstanding titles 10 and 29, if a legal entity is found
7 responsible pursuant to this section, a shareholder, member or partner of
8 that entity is jointly and severally liable with the entity to the person
9 trafficked for damages that arise from the trafficking of that person if
10 the person demonstrates that the shareholder, member or partner caused the
11 entity to be used to traffic that person for the direct personal benefit
12 of the shareholder, member or partner.

13 E. A claimant who prevails under this section:

14 1. Shall be awarded actual damages, including damages for mental
15 anguish even if an injury other than mental anguish is not shown, court
16 costs and reasonable attorney fees.

17 2. In addition to an award under paragraph 1 of this subsection,
18 may recover exemplary damages.

19 F. The rights and remedies provided in this section supplement any
20 other rights and remedies provided by law, including common law rights.

21 G. A person who engages in OR FACILITATES the trafficking of a
22 person or who intentionally or knowingly benefits from participating in OR
23 FACILITATING a venture that traffics another person and is found
24 responsible under this section or other law for any amount of damages
25 arising from the trafficking is jointly liable with any other person found
26 to be liable for the entire amount of damages arising from the
27 trafficking.

28 H. For the purposes of this section:

29 1. "Person" has the same meaning prescribed in section 13-105.

30 2. "Traffics another person" or "trafficking of a person" means
31 conduct that constitutes an offense under section 13-1306, 13-1307,
32 13-1308, 13-3206 or 13-3212.

33 Enroll and engross to conform

34 Amend title to conform

ALMA HERNANDEZ

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03/04/2026

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H: SC/ra

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